

TENTATIVE RULING

Case: **Martinez v. Hwang**
Case No. CV-2025-0700

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Motion to set aside:

Ralph B. Hwang, individually and as a Trustee of B R & Hwang Family Trust and Feng-Yu Hwang, individually and as a Trustee of B R & Hwang Family Trust's ("defendants") request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendants' unopposed motion to set aside/vacate plaintiffs James Martinez and Beatrice Chaidez's request for entry of default/clerk's entry of default is **GRANTED**. (Code Civ. Proc., § 473.) "An attorney has both an ethical and statutory obligation to warn opposing counsel, if counsel's identity is known, of an intent to seek a default and to give counsel a reasonable opportunity to file a responsive pleading." (*Shapell SoCal Rental Properties, LLC v. Chico's FAS, Inc.* (2022) 85 Cal.App.5th 198, 203 [*"Shapell"*]; *Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 137; Code Civ. Proc., § 583.130.) Despite knowing the identity of defendants' counsel, plaintiffs sought and obtained defaults against defendants without notification and allowing a reasonable opportunity for defendants to file a responsive pleading. (Cammack decl., ¶¶ 3, 8-13.) Several factors, in combination with this breach of ethics and violation of section 583.130, necessitate setting aside the defaults entered against defendants. (*Shapell, supra*, 85 Cal.App.5th at pp. 216-217.) Specifically, based on the evidence presented, plaintiffs' counsel knew the identity of defendants' counsel before the initiation of this litigation, plaintiffs' counsel gave no warning or notice before seeking entry of default against defendants, and there is no apparent prejudice as to plaintiffs. (Cammack decl., ¶¶ 3, 4, & 12; RJN, Exhibits 10-11; see also *Lasalle, supra*, 36 Cal.App.5th at p. 134.)

Defendants' answer, attached to their notice of motion, is deemed filed as of January 13, 2026.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

Parties are **DIRECTED TO APPEAR**.

TENTATIVE RULING

Case: **Munoz v. Fairview Investment Fund VIII, LP**
Case No. CV-2025-2796

Hearing Date: **January 13, 2026** **Department Fourteen** **9:00 a.m.**

Defendant Fairview Investment Fund VIII, LP's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, 453.)

Defendant's demurrer as to the first cause of action for declaratory relief on the grounds of failure to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Ludgate Ins. Co. v. Lockheed Martin Corp.* (2000) 82 Cal.App.4th 592, 605-606; Code Civ. Proc., § 1060; Complaint, ¶¶ 2-4 & 8-11.) While the notice of default (attached to the complaint) states that plaintiffs Joseph Michael Munoz III, individually, and Joseph Michael Munoz III and Kimberlee A. Puente, Trustees of the Guinane-Munoz-Puente Family Trust failed to pay delinquent property taxes, the complaint alleges that "plaintiffs have and are current in all of their tax obligations with the County of Yolo." (Complaint, ¶ 9.) Such allegations create a factual dispute, not proper for resolution on demurrer. (See, e.g., *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994; see also *Chacon v. Union Pacific Railroad* (2020) 56 Cal.App.5th 565, 573 ["Although the *existence* of a document may be judicially noticeable, the truth of the statements contained in the document and its proper interpretation are not subject to judicial notice if those matters are reasonably disputable"], emphasis in original, quotation marks and citation omitted.)

Defendant's demurrer as to the second cause of action for injunctive relief on the grounds of failure to state a cause of action is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) As the Court is overruling defendant's demurrer as to the first cause of action, defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Brownfield v. Daniel Freeman Marina Hospital* (1989) 208 Cal.App.3d 405, 410; Complaint, ¶¶ 9-10 & 13-15.)

Defendant's demurrer as to the third cause of action for accounting on the grounds of failure to state a cause is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) Defendant has failed to establish that the complaint does not state facts sufficient for this cause of action. (*Sass v. Cohen* (2020) 10 Cal.5th 861, 869; Complaint, ¶¶ 4 & 16-17.) Defendant has not shown that defendant and plaintiffs' relationship is not one that requires an accounting. (*Sass, supra*, 10 Cal.5th at p. 869.)

Defendant's demurrer as to each cause of action on the grounds of uncertainty is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (f).) The complaint is not uncertain such that defendant cannot reasonably respond. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed"].)

Defendant shall answer plaintiffs' complaint by no later than **January 23, 2026**. (Cal. Rules of Court, rule 3.1320(g), (j).)